THE STATE
Versus
THULANI NCUBE

HIGH COURT OF ZIMBABWE
MUZOFA J
CHINHOYI, 16 October 2025

Assessors *1. Mr Mutombwa*
2. Dr Mashavave

Sentencing Judgment

R. Nikisi for the State
G. Mukanduri for the accused

MUZOFA J:

[1] A pistol is a lethal weapon. Those lawfully issued with firearms are expected to exercise restraint and refrain from using them to settle disputes that have nothing to do with the reason for their issuance. The accused was lawfully issued with a pistol, when he had an altercation with his wife, he lost his temper, rushed to his gun cabinet and fatally shot his wife and his brother-in-law.

[2] Firearms are issued to individuals in terms of the Firearms Act [Chapter 10:09] after the controller has satisfied himself or herself that the purchaser has good reason to purchase, acquire or possesses a firearm or ammunition and can possess such firearm or ammunition without danger to the public safety or to the peace. The proviso to subsection 2 of s5 thereof provides that a controller shall not grant such firearm or ammunition to one of intemperate habits or unsound mind or for any reason unfit to be entrusted with such firearm. Unfortunately, after being trusted with such lethal weapons, some weapons have been used for wrong purposes, some have fallen into wrong hands leading to robberies. Maybe there is need for stricter regulations on issuing and possession of firearms.

Factual Background

[3]The accused appeared before us facing two counts of murder in contravention of s47 of the Criminal Law Code. He fatally shot his brother-in-law and his wife. He had four children with his wife.

[4] On the 16th of January 2025 the two deceased were seated at the accused's house drinking beer. Locardia, a sister to the accused's wife was with them but she was not drinking beer with them. She had visited them to mediate in their domestic issues. When the accused returned home to find his wife Nyengeterai drinking beer he was unamused. He assaulted Nyengeterai. Thereafter, there were some tussles he rushed to his gun cabinet, retrieved his pistol and shot Canaan the brother-in-law. His wife tried to escape, she rushed behind the house, the accused followed her and shot her thrice on the head.

[5] He denied the offences and pleaded guilty to the lesser charge of culpable homicide. There was no meeting of minds with State and the matter proceeded to trial.

[6] The accused denied the charge. His defence was ridiculous to say the least. He said when he got to the verandah, he reprimanded his wife who responded in a provocative and demeaning manner. Canaan pounced on him and started assaulting him while his wife cheered Canaan to continue assaulting him. Locardia tried to intervene. He sought refuge in his house but Canaan followed him with his wife still encouraging him. He decided to take his gun to scare them away. When he took his gun, they tussled for it with Canaan and the gun accidentally discharged killing Canaan.

[7] In respect of his wife, it was even worse, he said he tried to fire a warning shot (surprisingly he had already shot Canaan why would he fire a warning shot. His wife did not attack him.). His wife was in the line of fire. that's how she was shot. To our minds he raised self defence, intoxication and provocation. The issue of deflected blow does not even arise as the facts clearly showed.

[8] After hearing the parties and consideration of the circumstances we found that the accused was not attacked by the two deceased persons. The pictures produced before the court showed the deceased lying at different positions. This was real evidence which showed where each was when the accused fired at them. This put to rest and disproved the accused's defence that they were in the room where he took the pistol. Canaan lay on some sandy place and Nyengeterai's body was among some grass which was said to be behind their house.

[9] We found that Nyengeterai was shot while she was running away from the accused. She was shot thrice at the back of her head. His defence of a warning shot was dismissed without further ado. No warning shots are fired successively on someone's head. Provocation and intoxication can only be mitigatory and not a defence.

[10] We therefore came to the conclusion that the accused was reckless in his conduct. He foresaw that death was a possibility and he persisted in his conduct and indeed caused the death of the two deceased persons. He was found guilty of murder with constructive intention.

[11] In assessing sentence, we must first make a finding whether the offences were committed in aggravating circumstances.

[12] Both legal practitioners correctly submitted that the murder was committed in aggravating circumstances. The submissions were properly made. The accused used a firearm and shot two people. The facts fit in one of the listed aggravating factors under s47(2)(b) of the Criminal Law Code. This means a minimum sentence of 20 years shall be imposed. The court's discretion can only be exercised from 20 years imprisonment.

Mitigation

[13] The accused took to the witness stand to address the Court in mitigation. He is a family man with four children. He is now a widower and their youngest child was 7 months old. Sadly, the children whose ages range from 14 years to 7 months will grow without a mother who died by their father's hand. He tendered a limited plea although it was not accepted, in our view that showed some contrition.

[14] Compensation is also highly mitigatory, he paid ten beasts to his late wife's family and US$1500 paid to late Canaan's family. Although compensation does not bring the deceased back to life, it is a practical way to show remorse. It is extending a green leaf to the bereaved family to build bridges.

[15] He blamed evil spirits and intoxication for the offence. Unfortunately, the evil spirits cannot be tried. He was in custody for ten months which is not a long period of pre-trial incarceration. We take note that in view of the bail system and Constitutional provisions on bail, he could not be granted bail due to his own conduct. After committing the offence, he tried to flee from the country. He was arrested in a bus *en route* to South Africa with a completely new identity card and a new name.

[16] The couple's marriage was rocked with accusations of infidelity. The accused said in his mitigation their marriage was stable but they used to see 'messages' in each other's phones but the issues were resolved amicably. No further information was given on these infidelity messages. His wife's brother who gave evidence on the impact of the deaths confirmed that the marriage had its share of problems and Locardia would mediate.

[17] What found that Locardia had visited the couple to mediate on the accused's alleged affair with a mistress. Before us, he said his wife had an affair with Canaan the deceased. That was a lie. He knew that Canaan was a brother-in-law. In his warned and cautioned statement, he referred to Canaan as his brother-in-law. Even in his bail application he referred to him as his brother-in-law. In fact, their in-laws used to mediate in their problems.

[18] Whether rightly or wrongly, the accused suspected some infidelity on the part of the deceased. Obviously, this exerted some pressure on him. However, it is incomprehensive that he would suspect infidelity with Canaan who he knew very well that he was a brother-in-law.

Aggravation

[19] This is yet another scourge of domestic violence. The home and family unit where people are expected to find love and support systems has turned to be fertile ground for violence and at times with fatal consequences as in this case.

[20] *Mr Nikisi* made detailed submissions as he urged the Court to impose a life imprisonment sentence in each count. The offence was committed in full view of Nyengeterai's child. There was uncontroverted evidence that the accused would threaten his wife with the pistol. There was evidence that Nyengeterai ran away with her children after being threatened with the pistol prior to the commission of this offence. His children were therefore exposed to domestic violence. Children who witness domestic violence are scarred for life. In *S* v *Tevedzai HH 206/18* the court cited with approval research[1] findings on violence against women and the effects on children which are worth reproducing that,

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[1] Derek J. Timm, *Mommy, Daddy, Please Stop Fighting: A Legal Analysis of How Witnessing Spousal Abuse Harms a Child*, 2 U.C. Davis J. Juv. L. & Pol'y 29 (1997)
In support of counselling for such children see also, Laurel A. Kent, *Addressing the Impact of Domestic Violence on Children: Alternatives to Laws Criminalizing the Commission of Domestic Violence in the Presence of a Child*, 2001 Wis. L. Rev. 1337 (2001)

> "Trauma caused by witnessing abuse between parents can manifest itself in the child through a number of symptoms. These symptoms range from withdrawal and inattention to suicidal tendencies. The problems that a child develops from witnessing abuse will often plague the child for the rest of her life. Yet most courts refuse to classify the trauma or the enduring symptoms as child abuse. To protect these children, courts should change their view and consider the specific effects that witnessing abuse has on a child".

And further:

> "The child begins to associate violence with dispute resolution. Every time the child witnesses a violent episode, it reinforces the child's belief that violence solves disagreements. Children who grow up witnessing spousal abuse have a greater chance of becoming an abuser than children from non-violent homes."

[21] The accused has exposed his children to all the listed possible negative social constructs. They may grow up with a negative view to both marriage and life itself. His wife's child saw his mother being shot, he called out to his mother who responded 'I am dying my son'. Those were her last words to his son. Such a traumatic experience obviously left an indelible pain in the child's heart.

[22] There must be support systems to help the vulnerable children. In such cases provision for counselling for the children must be made mandatory as soon as the offence is committed. We considered making such an order for counselling but we were constrained to do so without the input of a social welfare officer to make appropriate recommendations. We urge the State to follow up on the issue.

[23] The State urged the court to impose a life imprisonment per count following the case of *Jindu* v *The State SC 114/21*. In that case the death penalty per count was imposed which was computed to life imprisonment after the promulgation of the Death Penalty Act No 4 of 2024 abolishing the death penalty. We were not persuaded. The *Jindu* case is distinguishable to this case. In that case the appellant caused the death of two friends on two separate occasions. What is classical and distinguishable is that these were clear ritual murders. The appellant shot the victims, mutilated the bodies and took some body parts.

[24] After the abolition of the death penalty, life imprisonment is the maximum sentence. It should therefore be reserved for the worst-case murders. For instance, where the murder is accompanied by mutilation, ritual murders or murders committed during a robbery.

See *S* v *Shamba and Another* HH419/23.In the *Tevedzai* case (*supra*) where the Court opined that the murder was accompanied by some torture a sentence of 35 years was imposed.

[25] After taking into account the mitigation and the aggravation the court must balance the triad, the offence, the offender and the interest of justice. The accused's life was reasonably above the ordinary people in his community he ran some businesses. He hailed from a stable family being he last born in a family of seven. Even if he is the villain, he is also a victim. He lost a wife, he actually said it pained him and regrets the incident deeply. His children are now as good as double orphans with the mother dead and the father in prison. We were told the 7-month child is now with Locardia who tried to mediate in the accused's marriage to no avail.

[26] Two lives were needlessly lost for no apparent reason. Even if the deceased Nyengeterai was drinking beer for the first time at their homestead that cannot be a valid reason to kill. The accused must have restrained himself. He shot Canaan at point blank. He shot him once. That cannot be said for Nyengeterai, he shot her thrice successively. She was running away from him. An exemplary sentence must be imposed otherwise society will lose confidence in the criminal justice system.

[27] We agonized on the appropriate sentence considering that there are two counts involved. Taking a leaf from *S* v *Dube* 1992(1) ZLR 234(S) that where a death penalty (which is now life imprisonment) is imposed each count must be sentenced separately. In our view even a minimum of 20 years per count may result in an excessive globular sentence tantamount to a life term of imprisonment. The Court can order the sentences to run concurrently as provided under s343(2) of the Criminal Procedure and Evidence Act (Chapter 9:07) to meet the justice of this case. See also *Jindu* v *The State (supra),* S v *Mpofu* HCC 8/25. The sentences must be differentiated a longer sentence in respect of his wife. Every spouse owes the other spouse a duty to protect and care, in a way the accused breached that duty or expectation.

From the forgoing the following sentence is imposed,

Count 1- 20 years imprisonment

Count 2- 25 years imprisonment

The sentences to run concurrently.

National Prosecuting Authority, the State's legal practitioners

Zimudzi & Associates, the accused's legal practitioners

